

AUTOMOBILE REPAIR WORKSHOP PARTNERSHIP DEED

PARTNERSHIP DEED

This Partnership Deed is executed on //20____ at Pune, Maharashtra between the following parties:

PARTNER – 1

Mr. Javed Shaikh

(Hereinafter referred to as "First Partner")

PARTNER – 2

Mr. Srikant Gaddan

(Hereinafter referred to as "Second Partner")

Both partners are collectively referred to as "The Partners."

1. PURPOSE

The Partners have voluntarily agreed to establish and operate an Automobile Repair Workshop for carrying on the business of:

Mechanical Repairs

Denting

Painting

Insurance Claim Repairs

Body Repair

Car Detailing

Accessories

Spare Parts

Car Care

Pickup & Drop

Wheel Related Repairs

Other automobile related activities.

The objective of this partnership is to build a long-term profitable business based upon honesty, transparency, equal participation and mutual trust.

2. NAME OF THE FIRM

The name of the partnership shall be decided jointly by both partners.

Neither partner shall register any identical or confusingly similar business name individually without the written consent of the other partner.

3. REGISTERED OFFICE

The workshop shall initially operate from rented premises.

The complete address shall be inserted once the premises are finalized.

If the business shifts to another location, the decision shall require written approval from both partners.

4. DURATION

This partnership shall remain valid for Five (5) Years from the date of execution.

On expiry of five years, it may be renewed by mutual written agreement.

5. OWNERSHIP

Ownership of the partnership shall remain:

Partner 1 : 50%

Partner 2 : 50%

No partner shall claim any additional ownership on the basis of:

More customers

Better contacts

Larger experience

More marketing

Higher revenue generation

Better technical knowledge

The ownership, profit-sharing and loss-sharing ratio shall remain 50:50 throughout the partnership unless changed by a fresh written agreement signed by both Partners.

6. CAPITAL CONTRIBUTION

The estimated initial project investment shall be approximately ₹10,00,000 (Rupees Ten Lakh only), subject to final confirmation and approval by both Partners.

Partner 1 shall contribute

Paint Spray Booth (Example)

This machine shall remain the exclusive property of Partner 1.

Partner 2 shall contribute

Car Lift (Example)

Mechanical Tools (Example)

Car Engine crane (Example)

Air Compressor (Example)

These assets shall remain the exclusive property of Partner 2.

7. BALANCE INVESTMENT

After deducting the value of the above personal assets, the remaining investment required for establishment of the workshop shall be contributed equally by both partners.

Both partners shall contribute:

50% : 50%

towards:

Security Deposit

Office Setup

Furniture

Electrical Work

Air Line

Compressor Installation

Reception

Software

Computer

Printer

Branding

Initial Working Capital

Miscellaneous Expenses

8. OWNERSHIP OF FUTURE ASSETS

Every machinery, tool or equipment purchased from partnership funds shall automatically become the common property of the partnership.

Neither partner shall sell, mortgage, transfer or remove any jointly owned machinery without written approval of the other partner.

9. WORKING PARTNERS

Both partners shall remain Full-Time Working Partners.

Each partner shall actively supervise workshop operations.

No partner shall remain merely an investor.

10. WORKING HOURS

Business timing shall be:

10:00 AM to 8:00 PM

Both partners shall remain available during business hours unless prevented by illness, emergency or mutually approved leave.

If any partner remains absent for more than 15 consecutive days without proper information or valid reason, it shall constitute a breach of this Agreement and the other partner may issue a written notice seeking an explanation.

11. Maintenance, Repairs & Operating Expenses

11.1 The Partners agree that the workshop shall be maintained in a clean, safe and professional condition at all times.

11.2 All routine and major maintenance expenses shall be treated as business expenses and shall be shared equally (50:50) by both partners, unless otherwise agreed in writing.

These expenses include but are not limited to:

Workshop Rent

Electricity Charges

Water Charges

Internet Charges

Air Compressor Maintenance

Paint Booth Maintenance

Car Lift Maintenance

Machine Servicing

Tool Repairs

Computer & Software Maintenance

Printer Maintenance

CCTV Maintenance

Generator Maintenance (if installed)

Office Expenses

Cleaning & Housekeeping

Fire Safety Equipment Maintenance

Pest Control

Security Charges

GST, Professional Fees & Compliance

Insurance Premium

Marketing & Advertisement

Website Maintenance

Business Promotion Expenses

Any other common business expense.

11.3 No partner shall intentionally delay or refuse payment of his agreed share of the common expenses.

11A. EMERGENCY EXPENSES

In a genuine emergency affecting customer safety, employee safety, workshop security or protection of Partnership property, either Partner may incur necessary expenditure. Full details, invoice and payment proof shall be provided to the other Partner within twenty-four (24) hours.

12. Profit & Loss Sharing

12.1 The net profit of the business, after deducting all legitimate business expenses, taxes and liabilities, shall be shared equally between the partners in the ratio of 50:50.

12.2 Any loss suffered by the business shall also be borne equally (50:50), unless such loss is directly caused by the fraud, willful misconduct or gross negligence of one partner.

12.3 No partner shall claim a larger share of profit merely because he:

brought more customers,

generated more revenue,

has more experience,

worked at an authorized dealership,

has a stronger market reputation,

has better business contacts, or

spends more time on business development.

The agreed ratio of 50:50 shall remain unchanged unless both partners execute a written amendment.

13. Customer Ownership & Business Development

13.1 Both partners acknowledge that one partner may initially have a stronger customer base or market reputation than the other.

13.2 Both partners expressly agree that every customer served after the commencement of the partnership shall be a customer of the partnership firm, irrespective of:

who introduced the customer,

who negotiated the job,

who communicated with the customer,

who referred the customer, or

who has a prior relationship with the customer.

13.3 The ownership of customers shall vest in the partnership firm and not in any individual partner.

13.4 No partner shall claim exclusive rights over any customer merely because he introduced that customer to the workshop.

14. No Comparison of Customer Base

14.1 The Partners acknowledge that, at the commencement of the business, Partner 2 (Mr. Srikant Gaddan) may have a stronger aftermarket customer base, while Partner 1 (Mr. Javed Shaikh) is entering the aftermarket after working in an authorised dealership.

14.2 Both partners agree that this difference shall not affect:

ownership,

profit sharing,

management rights,

voting rights, or

decision-making authority.

14.3 Neither partner shall, at any time, claim:

"I bring more customers."

"The workshop runs because of me."

"I deserve a bigger share."

"Most customers are mine."

Such claims shall have no effect on the agreed 50:50 partnership unless both partners agree in writing to revise the arrangement.

15. Goodwill & Customer Database

15.1 All goodwill created by the workshop shall belong exclusively to the partnership firm.

15.2 The following shall be treated as partnership assets:

Customer database

Service history

Contact lists

Job cards

Quotations

Invoices

Workshop records

Official mobile numbers

Official e-mail IDs

Business WhatsApp

Business website

Business branding

Workshop logo

Marketing material

15.3 No partner shall copy, misuse or remove these records for personal benefit during the partnership or after its termination, except as mutually agreed in writing.

16. PERSONAL SOCIAL MEDIA AND DIGITAL CONTENT ACTIVITIES

16.1 Either Partner may independently create, operate and manage personal YouTube channels, Instagram pages or other social media platforms for sharing automobile repair knowledge, technical information, educational content and professional experience. Such personal digital activities shall remain independent of the Partnership Firm.

16.2 Any personal social media account, channel, content, intellectual property, followers, subscribers and digital revenue generated independently by a Partner shall remain the personal property of that Partner, provided that the same is not created or operated as an official account of the Partnership Firm.

16.3 Income generated from such personal digital activities, including advertising revenue, sponsorships, brand collaborations, affiliate income, course income or other digital monetisation, shall belong exclusively to the Partner who independently creates and operates such a platform.

16.4 If any customer approaches the Partnership Firm after viewing or being referred through the personal social media content of either Partner, such customer shall be treated as a customer of the Partnership Firm. Any income generated from repair, service or other business transactions with such customers shall belong to the Partnership Firm and shall be shared between the Partners in accordance with the agreed 50:50 profit-sharing ratio.

16.5 Neither Partner shall claim any share in the personal digital income of the other Partner merely because such personal content generates customers for the Partnership Firm.

16.6 Neither Partner shall use confidential customer information, Partnership financial information or other confidential business information in personal digital content without the required consent.

17. SPARE PARTS PROCUREMENT POLICY

17.1 All spare parts, paint materials, consumables, accessories, lubricants and workshop supplies shall be purchased only from suppliers whose details are known to both Partners.

17.2 Neither Partner shall conceal the identity of any supplier, purchase price, discount, rebate, credit note, invoice or any commercial terms from the other Partner.

17.3 Every purchase shall be supported by a valid tax invoice or purchase bill, and copies of all purchase documents shall be maintained in the Partnership records.

17.4 Any purchase exceeding ₹25,000 (or such other limit as may be mutually agreed in writing) shall require the prior approval of both Partners, except in genuine emergency situations.

17.5 In the event of an emergency purchase, the purchasing Partner shall provide the purchase invoice, payment details and reasons for such purchase to the other Partner within twenty-four (24) hours.

18. SUPPLIER TRANSPARENCY AND ANTI-COMMISSION POLICY

18.1 Neither Partner shall directly or indirectly receive any personal commission, rebate, incentive, cashback, gift, credit note or financial benefit from any supplier without the knowledge and written consent of the other Partner.

18.2 Any commercial benefit received from suppliers in connection with purchases made for the Partnership shall be treated as the property of the Partnership Firm.

18.3 No Partner shall route purchases through any third party for the purpose of obtaining undisclosed personal financial benefits.

18.4 If any undisclosed commission or personal benefit is discovered, the concerned Partner shall immediately disclose the same and transfer such benefit to the Partnership Firm. Any further action shall be decided mutually by both Partners.

19. SUPPLIER APPROVAL POLICY

19.1 The appointment of new suppliers or replacement of existing suppliers shall be made only after mutual discussion and approval by both Partners.

19.2 Supplier selection shall be based upon quality, competitive pricing, availability, warranty support, reliability and timely delivery.

19.3 The Partners may periodically compare market prices to ensure that all purchases are made at fair and competitive rates.

20. FRIENDS, RELATIVES AND SPECIAL DISCOUNT POLICY

20.1 If either Partner wishes to extend a special discount to a friend, relative, personal contact or preferred customer, the same shall be discussed with the other Partner before finalising the invoice.

20.2 Neither Partner shall provide free labour, free spare parts, free paint materials or complimentary services without the prior knowledge and consent of the other Partner.

20.3 Every special discount, concession or complimentary service shall be properly recorded in the Job Card or Invoice along with the reason for granting such benefit.

20.4 Both Partners acknowledge that unnecessary discounts may adversely affect the profitability of the Partnership Firm and therefore shall be granted only where commercially justified.

21. CREDIT CUSTOMER POLICY

21.1 The standard business policy of the Partnership shall be "Payment on Delivery", unless otherwise mutually agreed.

21.2 Credit exceeding ₹10,000 (or such revised amount as may be agreed in writing) shall not be extended to any customer without the approval of both Partners.

21.3 Where a Partner independently extends credit to a customer based solely upon his personal relationship without obtaining the consent of the other Partner, the responsibility for recovery of such outstanding amount shall primarily rest with the concerned Partner, unless both Partners mutually agree otherwise.

21.4 A separate Credit Register shall be maintained containing the customer's name, contact details, vehicle registration number, outstanding amount, due date and recovery status.

22. CASH COLLECTION AND BANKING

22.1 All receipts collected through cash, UPI, debit card, credit card, bank transfer or any other mode shall constitute the income of the Partnership Firm.

22.2 No Partner shall deposit Partnership income into his personal bank account except with the prior written consent of the other Partner.

22.3 Daily cash reconciliation shall be carried out at the close of business, and proper records shall be maintained.

22.4 All business expenditures shall, wherever reasonably practicable, be made through banking channels to ensure transparency and proper accounting.

22.5 Both Partners shall have access to the Partnership bank account, bank statements and transaction records. The Partners shall jointly determine the authorised signatory arrangement and transaction limits through a written banking mandate.

23. ACCOUNTING TRANSPARENCY

23.1 Complete and accurate books of accounts shall be maintained in accordance with applicable laws and accepted accounting practices.

23.2 Each Partner shall have unrestricted access during business hours to inspect the following records:

Bank Statements

Cash Book

General Ledger

Purchase Register

Sales Register

GST Records

Tax Invoices

Stock Register

Expense Register

Supplier Records

Customer Records

23.3 Neither Partner shall intentionally conceal, alter, destroy or manipulate any financial record or business document belonging to the Partnership Firm.

23.4 Both Partners shall cooperate fully in maintaining complete financial transparency and accountability in all business transactions.

24. EMPLOYMENT AND HUMAN RESOURCE POLICY

24.1 All employees of the Partnership Firm shall be appointed solely for the benefit of the business and not for the personal benefit of either Partner.

24.2 Recruitment of technicians, painters, denters, mechanics, electricians, estimators, office staff, drivers, helpers and other employees shall be carried out jointly by both Partners.

24.3 The appointment, salary revision, promotion, suspension or termination of any employee shall require the mutual consent of both Partners.

24.4 Every employee shall be provided with a written appointment letter specifying duties, salary, working hours and company policies.

24.5 Employees shall not be permitted to receive cash, gifts, commissions or personal benefits from customers or suppliers without the written approval of the Partners.

25. FAMILY INTERFERENCE

25.1 The Partners agree that the management and operation of the Partnership Firm shall remain exclusively under the authority of the Partners.

25.2 No family member, relative or friend of either Partner shall interfere in the management, financial affairs or decision-making process of the Partnership Firm unless both Partners provide their written approval.

25.3 If any family member is employed by the Partnership Firm, such appointment shall be made strictly on merit and with the written approval of both Partners.

26. TOOLS, MACHINERY AND EQUIPMENT MANAGEMENT

26.1 A complete Asset Register shall be maintained for all workshop machinery, tools and equipment.

26.2 Every jointly purchased tool or machine shall be assigned a unique identification number and recorded in the Asset Register.

26.3 Employees receiving tools shall acknowledge receipt through a Tool Issue Register.

26.4 Any loss, theft or damage to workshop equipment shall be investigated jointly by the Partners, and responsibility shall be determined after reviewing the facts.

27. INVENTORY CONTROL

27.1 The Partnership Firm shall maintain accurate records of all spare parts, paint materials, consumables and accessories.

27.2 Physical stock verification shall be conducted at least once every month in the presence of both Partners.

27.3 Any shortage, excess or unexplained stock variation shall be investigated immediately.

28. PERSONAL EXPENSES

28.1 Neither Partner shall use the Partnership Firm's funds to pay for personal expenses, family expenses or personal liabilities.

28.2 Any personal expenditure mistakenly paid from the Partnership account shall be reimbursed to the Partnership Firm without delay.

29. WORKSHOP SECURITY

29.1 CCTV cameras shall be installed in appropriate locations within the workshop for operational monitoring and security.

29.2 CCTV recordings shall be preserved for a reasonable period, subject to storage availability, and shall be accessible to both Partners.

29.3 Workshop keys, digital access credentials and security systems shall remain under the joint control of both Partners.

30. CUSTOMER VEHICLE SAFETY

30.1 Every customer's vehicle shall be handled with due care and professional responsibility.

30.2 Vehicle movement within or outside the workshop premises shall be carried out only by authorised personnel holding a valid driving licence.

30.3 Appropriate precautions shall be taken to protect customer vehicles from avoidable damage during repair, testing, pickup and delivery.

30.4 If any damage occurs to a customer's vehicle during pickup, drop or workshop operations, the matter shall be investigated jointly. Business losses arising during normal operations shall be borne by the Partnership Firm in accordance with this Agreement. However, any loss resulting from the intentional misconduct or gross negligence of a Partner or an employee shall be the responsibility of the person responsible, subject to mutual determination by the Partners.

31. MONTHLY BUSINESS REVIEW

31.1 The Partners shall conduct at least one formal business review meeting every month.

31.2 The meeting shall include, among other matters:

Sales Performance

Profit and Loss

Outstanding Receivables

Pending Payments

Customer Complaints

Employee Performance

Inventory Status

Marketing Activities

Future Business Planning

31.3 Minutes of every meeting shall be recorded, signed by both Partners and maintained as an official business record.

32. QUALITY ASSURANCE POLICY

32.1 The Partnership Firm shall maintain high standards of workmanship and customer service.

32.2 No counterfeit, defective or substandard spare part or material shall be used without the customer's prior knowledge and consent.

32.3 Both Partners shall strive to maintain the reputation, goodwill and professional standards of the Partnership Firm at all times.

33. RETIREMENT OR VOLUNTARY EXIT OF A PARTNER

33.1 Either Partner may voluntarily retire from the Partnership by giving not less than Ninety (90) Days' prior written notice to the other Partner.

33.2 During the notice period, both Partners shall continue to perform their duties in good faith and shall cooperate in ensuring a smooth transition of the business.

33.3 The outgoing Partner shall not remove any Partnership assets, records, customer data, business documents or funds without the written consent of the remaining Partner.

33.4 Before the effective date of retirement, all accounts between the Partners shall be reconciled and settled.

33A. EXIT SETTLEMENT TIMELINE

The final settlement of the outgoing Partner shall, as far as reasonably practicable, be completed within ninety (90) days from the effective date of retirement, subject to completion of accounts, recovery of receivables, settlement of liabilities and valuation of Partnership assets.

34. RETURN OF CONTRIBUTED ASSETS

34.1 Upon retirement, dissolution or termination of the Partnership:

(a) The Paint Spray Booth contributed by Partner 1 (Mr. Javed Shaikh) shall remain the exclusive property of Partner 1 and shall be returned to him.

(b) The Car Lift(s) and Mechanical Tools contributed by Partner 2 (Mr. Srikant Gaddan) shall remain the exclusive property of Partner 2 and shall be returned to him.

34.2 All machinery, furniture, equipment or infrastructure purchased from Partnership funds shall remain Partnership property and shall be disposed of or divided only by mutual agreement or after valuation.

35. EXIT, OWNERSHIP OF INDIVIDUAL ASSETS AND FINAL SETTLEMENT

35.1 Either Partner may voluntarily retire, withdraw or exit from the Partnership by providing at least Ninety (90) Days' prior written notice to the other Partner.

35.2 Neither Partner shall have any automatic, preferential or exclusive first right to purchase the Partnership interest or personal assets of the outgoing Partner.

35.3 INDIVIDUAL ASSETS OF PARTNER 1

The Paint Spray Booth contributed by Partner 1, Mr. Javed Shaikh, shall remain the sole, absolute and exclusive property of Partner 1. Such Paint Spray Booth shall not be treated as a Partnership asset and shall not form part of the jointly owned Partnership property.

Partner 1 shall have the absolute right, subject to applicable law and any third-party contractual rights, to:

(a) retain the Paint Spray Booth during the Partnership;

(b) take back and remove the Paint Spray Booth from the workshop premises upon his retirement, withdrawal, exit or dissolution of the Partnership;

(c) sell, transfer or otherwise dispose of the Paint Spray Booth to any person of his choice;

(d) retain the Paint Spray Booth for his personal use or use it in any other lawful business; and

(e) determine the manner, timing and consideration of any sale or disposal of the Paint Spray Booth.

Partner 2 shall have no ownership, beneficial interest, lien or claim over the Paint Spray Booth merely because it was used in the Partnership business.

35.4 INDIVIDUAL ASSETS OF PARTNER 2

The Car Lift(s), Mechanical Tools and Hand Tools contributed by Partner 2, Mr. Srikant Gaddan, shall remain the sole, absolute and exclusive property of Partner 2.

Such assets shall not be treated as jointly owned Partnership assets.

Partner 2 shall have the absolute right, subject to applicable law and any third-party contractual rights, to:

- (a) retain such assets during the Partnership;
- (b) take back and remove such assets from the workshop premises upon his retirement, withdrawal, exit or dissolution of the Partnership;
- (c) sell, transfer or otherwise dispose of such assets to any person of his choice;
- (d) retain such assets for his personal use or use them in any other lawful business; and
- (e) determine the manner, timing and consideration of any sale or disposal of such assets.

Partner 1 shall have no ownership, beneficial interest, lien or claim over such assets merely because they were used in the Partnership business.

35.5 NO CLAIM ON INDIVIDUAL ASSETS

Neither Partner shall, during or after the Partnership, claim any share, compensation, ownership interest, goodwill value or monetary benefit in the individually contributed assets of the other Partner.

The use of any individually owned asset by the Partnership shall not, by itself, transfer ownership of that asset to the Partnership or to the other Partner.

35.6 JOINTLY PURCHASED PARTNERSHIP ASSETS

All machinery, equipment, furniture, tools, infrastructure, fixtures and other assets purchased from Partnership funds shall be treated as joint Partnership assets, unless specifically recorded in writing as the exclusive property of one Partner.

Such jointly purchased assets shall belong to the Partners in the agreed 50:50 economic proportion, subject to the Partnership's liabilities and obligations.

35.7 SETTLEMENT OF JOINT ASSETS ON EXIT

Upon the exit of either Partner, jointly purchased assets shall be valued at their mutually agreed fair market value.

If the Partners cannot agree on the value, an independent Chartered Accountant or Registered Valuer mutually appointed by the Partners shall determine the fair market value.

After adjustment of Partnership liabilities and legitimate business obligations, the economic value of such jointly owned assets shall be settled between the Partners on a 50:50 basis.

35.8 METHOD OF SETTLEMENT

The Partners may mutually decide that jointly purchased assets shall be:

- (a) physically divided between them on an equivalent 50:50 value basis; or
- (b) sold to a third party and the net proceeds distributed equally after settlement of Partnership liabilities; or
- (c) retained by one Partner against payment of the other Partner's agreed 50% value.

35.9 FINAL ACCOUNT SETTLEMENT

Before the final exit settlement, a statement of accounts shall be prepared showing:

Cash and Bank Balance;
Customer Receivables;
Spare Parts and Inventory;
Supplier Payables;
Loans and Other Liabilities;
Jointly Purchased Assets;
Other Partnership Assets;
Outstanding Expenses; and

Each Partner's 50% share.

35.10 NO AUTOMATIC FIRST RIGHT

No Partner shall have an automatic or preferential first right to purchase the other Partner's Partnership interest or individually owned assets.

Any transfer of the Partnership interest or admission of a new Partner shall be subject to mutual written agreement and applicable law.

Except in the event of death or permanent disability covered under Clause 36, neither Partner shall have an automatic preferential right to purchase the other Partner's Partnership interest unless mutually agreed in writing.

35.11 HANDOVER AFTER SETTLEMENT

After completion of the final settlement, each Partner shall be entitled to take possession of his individually owned assets and any jointly owned assets allocated to him under the agreed settlement.

Neither Partner shall obstruct or unreasonably delay the other Partner from taking possession of his legally established individual property.

35.12 ASSET REGISTER

An Asset Register shall be maintained from the commencement of the Partnership clearly identifying:

Assets exclusively owned by Partner 1;

Assets exclusively owned by Partner 2; and

Assets purchased jointly from Partnership funds.

The Asset Register shall be signed or acknowledged by both Partners and shall be updated whenever any material asset is purchased, sold, replaced or otherwise disposed of.

35A. VALUATION OF PARTNERSHIP INTEREST

For the purpose of exit or retirement, the Partnership's net assets and liabilities shall be determined from the books of account. Where the Partners cannot mutually agree upon the valuation, an independent Chartered Accountant or Registered Valuer mutually appointed by both Partners shall determine the fair value.

36. DEATH OR PERMANENT DISABILITY

36.1 In the event of the death or permanent disability of either Partner, the Partnership shall not automatically transfer management rights to the legal heirs.

36.2 The legal heirs shall be entitled only to receive the financial value of the deceased or disabled Partner's Partnership share, unless both Partners had previously agreed otherwise in writing.

36.3 The continuing Partner shall have the first option to purchase such Partnership interest.

37. CONFIDENTIALITY

37.1 Both Partners shall maintain strict confidentiality regarding all business information, including but not limited to:

Customer Lists

Supplier Information

Purchase Prices

Financial Statements

Profit Margins

Business Strategies

Technical Processes

Employee Information

Marketing Plans

Digital Records

37.2 This obligation shall continue even after the retirement, resignation or dissolution of the Partnership.

38. NON-COMPETE

38.1 During the existence of this Partnership, neither Partner shall establish, finance, manage or actively participate in any competing automobile repair business without the prior written consent of the other Partner.

38.2 Nothing contained herein shall prevent either Partner from carrying on any independent business activity that does not directly compete with the Partnership Firm.

39. NON-SOLICITATION

39.1 During the Partnership and for a reasonable period following its termination, neither Partner shall intentionally induce or persuade any employee of the Partnership Firm to leave employment for the benefit of another competing business.

39.2 Neither Partner shall intentionally divert customers of the Partnership Firm to another competing business through dishonest means.

40. DISPUTE RESOLUTION

40.1 The Partners shall first attempt to resolve all disputes through mutual discussion and negotiation.

40.2 If the dispute remains unresolved within thirty (30) days, the matter shall be referred to mediation.

40.3 If mediation fails, the dispute shall be finally resolved through arbitration in accordance with the Arbitration and Conciliation Act, 1996.

40.4 The seat and venue of arbitration shall be Pune, Maharashtra, unless both Partners agree otherwise in writing.

40.5 The decision of the Arbitrator shall be final and binding upon both Partners.

40.6 DEADLOCK BETWEEN PARTNERS

If the Partners are equally divided on any material business decision, neither Partner shall unilaterally implement the disputed decision. The Partners shall first conduct a formal meeting to resolve the matter. If the matter remains unresolved for fifteen (15) days, the Partners shall attempt mediation. If mediation fails, the dispute shall be dealt with under the arbitration provisions of this Deed.

41. GOVERNING LAW

This Agreement shall be governed by and interpreted in accordance with the laws of India, including the applicable provisions of the Indian Partnership Act, 1932, and other applicable laws in force from time to time.

41A. REGISTRATION AND STATUTORY COMPLIANCE

The Partners shall take all necessary steps for registration of the Partnership Firm and shall obtain applicable PAN, GST registration, local licences, insurance, tax registrations and other statutory permissions required for carrying on the workshop business.

42. GOOD FAITH

Both Partners undertake to conduct the business honestly, fairly and in good faith, always acting in the best interests of the Partnership Firm and avoiding any act that may harm its reputation, financial position or long-term sustainability.

43. DISSOLUTION OF THE PARTNERSHIP

43.1 The Partnership Firm may be dissolved only by mutual written consent of both Partners or in accordance with applicable law.

43.2 Upon dissolution, all liabilities of the Partnership Firm shall first be identified and discharged before any distribution of assets is made.

43.3 After settlement of all liabilities, the remaining Partnership assets shall be distributed in accordance with this Agreement.

44. SETTLEMENT OF PARTNERSHIP ASSETS

44.1 Assets personally contributed by the Partners shall remain the exclusive property of their respective owners.

(a) The Paint Spray Booth shall be returned to Partner 1.

(b) The Car Lift(s) and Mechanical Tools contributed by Partner 2 shall be returned to Partner 2.

44.2 Assets purchased from Partnership funds shall be jointly owned by both Partners.

44.3 Such jointly owned assets may be:

Divided by mutual agreement;

Purchased by one Partner at an agreed valuation; or

Sold to a third party, with the net proceeds being shared equally after settlement of liabilities.

45. FORCE MAJEURE

Neither Partner shall be held liable for any failure or delay in performing obligations under this Agreement where such failure results from events beyond reasonable control, including but not limited to natural disasters, fire, flood, earthquake, pandemic, government restrictions, war, civil unrest or any other force majeure event.

The affected Partner shall notify the other Partner as soon as reasonably practicable.

46. OFFICIAL RECORDS

The Partnership Firm shall maintain complete and accurate records including:

Partnership Deed

GST Records

Income Tax Records

Purchase Register

Sales Register

Inventory Register

Employee Register

Attendance Register

Tool Issue Register

Asset Register

Cash Book

Bank Records

Insurance Records

Customer Job Cards

All such records shall remain the property of the Partnership Firm.

47. DIGITAL ASSETS

The following shall be deemed Partnership Assets where created in the name of the Partnership Firm:

Official Website

Official Email Address

Business WhatsApp Account

Google Business Profile

Official Facebook Page

Official Instagram Account

Official YouTube Channel (if created in the firm's name)

Domain Names

Business Software Licences

Digital Marketing Accounts

Both Partners shall have equal access to such official digital assets unless otherwise agreed in writing.

48. AMENDMENT OF THIS AGREEMENT

No alteration, modification or addition to this Agreement shall be valid unless it is made in writing and signed by both Partners.

Any verbal understanding inconsistent with this Agreement shall have no legal effect unless subsequently reduced to writing and signed by both Partners.

49. NOTICES

All legal notices, communications and important business correspondence between the Partners shall be made in writing and may be delivered by hand, registered post, recognised courier service or electronic mail, with proof of delivery wherever reasonably possible.

50. ENTIRE AGREEMENT

This document constitutes the complete understanding between the Partners concerning the Partnership Firm and supersedes all prior oral discussions, negotiations or informal understandings relating to the matters covered herein.

ANNEXURE – A

Assets Contributed by Partner 1

Paint Spray Booth (Example)

Agreed Value ₹ _____

(Additional assets may be added by written amendment.)

ANNEXURE – B

Assets Contributed by Partner 2

Car Lift(s) (Example)

Mechanical Tools (Example)

Hand Tools (Example)

Agreed Value ₹ _____

(Additional assets may be added by written amendment.)

ANNEXURE – C

Jointly Purchased Assets

A register shall be maintained for all assets purchased from Partnership funds, including:

Equipment Description

Serial Number

Purchase Date

Purchase Value

Supplier Details

Current Condition

ANNEXURE – D

Monthly Business Review Register

The Partners shall record:

Monthly Sales

Monthly Expenses

Net Profit

Pending Receivables

Customer Complaints

Employee Performance

Inventory Status

Business Development Plans

Both Partners shall sign each monthly review record.

ANNEXURE – E

Supplier Register

The following information shall be maintained:

Supplier Name

Contact Details

GST Number (where applicable)

Product Categories

Agreed Pricing

Discount Structure

Credit Terms

ANNEXURE – F

Customer Pickup & Delivery Register

The register shall include:

Customer Name

Vehicle Registration Number

Date & Time of Pickup

Driver Name

Vehicle Condition at Pickup

Date & Time of Delivery

Customer Acknowledgement

ANNEXURE – G

OPENING CAPITAL STATEMENT

Particular	Amount
Total Estimated Project Investment	₹100000
Partner 1 – Individual Asset Value	₹_____
Partner 2 – Individual Asset Value	₹_____
Balance Investment Required	₹_____
Partner 1 – 50% Balance Contribution	₹_____
Partner 2 – 50% Balance Contribution	₹_____

EXECUTION

IN WITNESS WHEREOF, the Partners have read, understood and voluntarily executed this Partnership Deed on the date first written above.

Partner 1

Mr. Javed Shaikh

Signature: _____

Date: _____

Partner 2

Mr. Srikant Gaddan

Signature: _____

Date: _____

Witness 1

Name: _____

Signature: _____

Address: _____

Witness 2

Name: _____

Signature: _____

Address: _____